

25STCV21787 25STCV21787

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-09-15

Motion: PLAINTIFF'S MOTIONS TO COMPEL INITIAL RESPONSES TO FORM INTERROGATORIES, SET ONE, SPECIAL INTERROGATORIES, SET ONE, REQUESTS FOR PRODUCTION OF DOCUMENTS SET ONE AND DEEM ADMITTED REQUESTS FOR ADMISSION, SET ONE WITH A REQUEST FOR SANCTIONS

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Case Number: 25STCV21787 Hearing Date: September 15, 2026 Dept: 733

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES

KATRIENA

K. DUMMETT,

Plaintiff,

vs.

TOYOTA

MOTOR SALES, U.S.A., INC.; CHUCK PATTERSON TOYOTA SCION DODGE; and DOES 1 through 10, inclusive,

Defendants.

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CASE NO.: 25STCV21787

[TENTATIVE] ORDER RE:

PLAINTIFF'S MOTIONS TO COMPEL INITIAL
RESPONSES TO FORM INTERROGATORIES, SET ONE, SPECIAL INTERROGATORIES, SET ONE,
REQUESTS FOR PRODUCTION OF DOCUMENTS SET ONE AND DEEM ADMITTED REQUESTS FOR
ADMISSION, SET ONE WITH A REQUEST FOR SANCTIONS

Dept. 733

8:30 a.m.

September 15, 2026

I.

INTRODUCTION

This is a Song-Beverly action.

On July 24, 2025, Plaintiff Katriena K. Dummett ("Plaintiff") filed
a complaint against Defendants Toyota Motor Sales, U.S.A., Inc. ("Toyota"), and
Chuck Patterson Toyota Scion Dodge ("Toyota Scion Dodge") (collectively,
"Defendants"), alleging causes of action for (1) Violation of Subdivision (d)
of Civil Code section 1793.2, (2) Violation of Subdivision (b) of Civil Code

section 1793.2, (3) Violation of Subdivision (a)(3) of Civil Code section 1793.2, (4) Breach of Implied Warranty of Merchantability, (5) Negligent Repair, and (6) Fraudulent Inducement – Concealment.

On August 17, 2026, Plaintiff filed the instant motions to compel initial responses to Form Interrogatories, set one ("FROGs"), Special Interrogatories set one ("SROGs"), and Requests for Production, set one ("RFPDs") and to deem admitted Requests for Admission, set one ("RFAs") (together, "Discovery Requests").

On September 1 and 3, 2026, Defendant filed oppositions.

On September 8 and 10, 2026, Plaintiff filed replies.

II.

LEGAL STANDARD

1.

Interrogatories

A responding party has 30 days after service of interrogatories to serve their responses on the propounding party. (Code Civ. Proc. § 2030.260(a).) However, if interrogatories are served by electronic service, a responding party has an additional two (2) court days to respond. (Id. § 1010.6(a)(3)(B).) 2

If the responding party fails to timely respond to the interrogatories, "The party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010)." (Code Civ. Proc. § 2030.290(a).) 2

Furthermore, the party propounding the interrogatories may move for an order compelling response to the interrogatories. (Code Civ. Proc., §§ 2030.290(b), 2031.300(b).) And "[u]nlike a motion to compel further responses, a motion to compel responses is not subject to a 45-day time limit, and the propounding party does not have to demonstrate either good cause or that it satisfied a 'meet and confer' requirement." (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare

Consultants (2007) 148 Cal.App.4th 390, 404.)²²

Failure to timely respond

waives all objections, including privilege and work product, unless “[t]he party has subsequently served a response that is in substantial compliance” and “[t]he party’s failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.”

(Code Civ. Proc., § 2030.290 (a)(1)-(2).)

2.

Requests for Production

A

party must respond to requests for production of documents within 30 days after service. (Code Civ. Proc. § 2031.260 (a).) The propounding and responding parties may agree to extend the time for response. (Id. § 2031.270(a).)

If a party to whom requests for production of documents are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Id. § 2031.300 (c).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Id. § 2031.300 (a).)

There

is no time limit for a motion to compel responses to requests for production of documents other than the cut-off on hearing discovery motions 15 days before trial. (Id. §§ 2024.020 (a), 2031.300.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Id. § 2031.300; Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 411.)²³

The party who fails to

serve a timely response to a demand for inspection waives any objection to the demand unless the court finds that the party has subsequently served a response that is in substantial compliance or party’s failure was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc. § 2031.300 (a)(1)-(2).)

3.

Requests for Admission

“Any

party may obtain discovery . . . by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a request matter that is in controversy between the parties.” (Code Civ. Proc., § 2033.010.)

“Within 30 days after service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party, and a copy of the response on all other parties who have appeared” (Code Civ. Proc., § 2033.250(a).)

If

a party to whom request for admissions are served fails to provide a timely response, the party to whom the request was directed waives any objections, including based on privilege or the work product doctrine. (Code Civ. Proc., § 2033.280(a).) The requesting party can move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for monetary sanctions. (Code Civ. Proc., § 2033.280(b).) The court shall issue this order unless the party to whom the request was made serves a response in substantial compliance prior to the hearing on the motion. (Code Civ. Proc., § 2033.280(c).)ﷲﷲﷲ

III.

DISCUSSION

Plaintiff

moves to compel Defendant to provide verified responses without objections to Plaintiff’s FROGs, SROGs, RFPDs and to deem admitted its RFAs.

Plaintiff declares that on November 4, 2025, Plaintiff served upon Defendant her Discovery Requests. (Wong Decl., ¶ 3, Exs. 1-2.) The responses were therefore due on December 6, 2025. Plaintiff provides that as of the date of filing the motion on August 7, 2026, Defendant has not served any responses. (Id. ¶ 4.)

In opposition, Defendant asserts that due to internal oversight, Defendant failed to produce the responses within thirty (30) days of Plaintiff’s service. (Kong Decl., ¶ 4.) However, Defendant provides that on August 26, 2026, after attempting to meet and confer with Plaintiff’s counsel, Defendant provided Code-compliant responses to all Plaintiff’s Discovery Requests. (Id. ¶ 13, Ex. G.)

Given

that Defendant has provided responses prior to the hearing that are in substantial compliance with the Code, the instant motions are denied as moot.

Sanctions

When a request for monetary sanctions is

concurrently filed with a motion to compel responses, “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code of Civ. Proc., § 2023.030(a).) Additionally, “If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that one subject to the sanction acted with substantial justification or that other circumstances make the imposition of sanction unjust.” (Ibid.)

The Court does not find sanctions against Defendant to be appropriate. As Defendant provides, once Plaintiff served her motions upon Defendant and Defendant realized the internal oversight, on August 25, 2026, Defendant’s counsel reached out to Plaintiff’s counsel to indicate that Defendant would promptly serve its responses. (Kong Decl., ¶ 8.) Plaintiff’s counsel informed Defendant’s counsel that he still would not be withdrawing the motions. (Id. ¶ 10.) That next day, Defendant’s counsel served the responses. (Id. ¶ 13, Ex. G.) This entire course of conduct clearly indicates that a simple communication by Plaintiff’s counsel with Defendant’s counsel, after doing nothing for nine months, would have avoided all this. Thus, the Court finds that the imposition of sanctions would be unjust and, in fact, would reward the sort of gamesmanship engaged in by Plaintiff’s counsel in this case.

IV.

CONCLUSION

Plaintiff’s

motions to compel initial responses to Requests for Production, set one, Form Interrogatories, set one and Special Interrogatories, set one and motion to deem Requests for Admission, set one admitted are DENIED as moot.

Plaintiff’s accompanying

requests for sanctions are DENIED.

Dated this 15th
day of September 2026

Hon. Gary D.
Roberts

Judge of the
Superior Court